

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 9, 2024

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: COUNCIL MEMBERS – Dr. Michelle Aldrich (via Zoom), Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Patrick Collins, Mayor. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Cook and Mr. Roybal, item #20 (c) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on August 26, 2024. Motion (per Consent Agenda) carried.

President Esquibel opened a Public Hearing for a transfer of ownership of retail liquor license application filed with the City Clerk’s Office for 1734 Partners, LLC d/b/a 1734 Partners, 1734 Meadowland Dr., Cheyenne, WY (license currently held by Old Chicago Taproom II, LLC d/b/a/ Old Chicago #74). Public comment was made by: John Johnson, principle 1734 partner. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson and Dr. Rinne. There being no further comment or input and the purpose of the hearing having been met, President Esquibel closed the hearing and referred the application to Finance Committee.

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located west of Converse Avenue and north of Dell Range Boulevard. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4583)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AG Agricultural for land annexed to the City of Cheyenne located west of Converse Avenue and north of Dell Range Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4584)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AG Agricultural to NR-3 Neighborhood Residential - High Density for land located west of Converse Avenue and north of Dell Range

Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4585)

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, land located east of US-30 and north of and adjacent to East Pershing Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4586)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of MUR Mixed-Use Residential for land annexed to the City of Cheyenne located east of US-30 and north of and adjacent to East Pershing Boulevard. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4587)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial to CB Community Business for land located northeast of the intersection of Hutchins Drive and Industry Drive. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4588)

ORDINANCE –3rd READING – Amending Section 2.76.040, Designation of Downtown Development District, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to expand the Downtown Development District. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute maps provided in staff memo dated August 27, 2024, seconded by Mr. Segrave. Motion to amend by substitute maps carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich voting “no”. Main motion carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn. (#4589)

ORDINANCE – 1st READING – Amending the Unified Development Code (UDC) of the City of Cheyenne, Wyoming, to create BP Business Park Zone District and making conforming amendments to locations throughout the UDC referencing zone districts; and amending the UDC to correct references associated with the SS Support Services District – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6423)

RESOLUTION – Approving sanitary sewer service, by Outside User Agreement, for Oh Hail No LLC, for land located south of Robert Avenue and west of South Greeley Highway. Mr. Roybal moved to adopt, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute dated August 30, 2024, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Laybourn

voting “no”. Public comment was made by: Brad Emmons, AVI, agent for applicant. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Laybourn, Dr. Rinne, Mr. Segrave, and Mr. White. (#6424)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Scenic Development, 5th Filing, City of Cheyenne, Laramie County, Wyoming (located west of Converse Avenue and north of Dell Range Boulevard) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Andiamo Subdivision Second Filing, City of Cheyenne, Laramie County, Wyoming (located southeast of the intersection of West 19th Street and O’Neil Avenue) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located at 4614 East Pershing Boulevard to allow installation of a small wastewater system (septic system) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

Contract between the City of Cheyenne Police Department and Tyler Technologies for maintenance and support services of the Police Department’s records management software (General Fund). Reporting for Finance Committee, Mr. White moved to approve, seconded by Mr. Segrave. Motion carried in an amount not to exceed \$735,215.00. Voting “yes” – all members of the governing body present. Comments were made by the following member of the governing body: Mr. Johnson. (#8044)

[CA] License Agreement between the City of Cheyenne and the United States of America Western Area Power Administration (WAPA) for the construction of the Terry Ranch Road-Cheyenne 230-kV and the Owl Creek-Cheyenne 115kV transmission lines. Motion (per Consent Agenda) carried. (#8045)

Professional Services Agreement between the City of Cheyenne and Ayres Associates for the 19th Street Drainage and Intersection Improvements Project (2019-2022 Optional 1% Sales Tax Fund). Mr. White moved to approve, seconded by Mr. Segrave. Motion carried in an amount not to exceed \$712,446.00. Voting “yes” – all members of the governing body present. Comments were made by the following member of the governing body: Mr. Laybourn. (#8046)

Professional Services Agreement between the City of Cheyenne and The Design Studio, Inc. (TDSi), for the restoration and remodel of the Cheyenne Pump House (General Fund Reserves). Mr. White moved to approve, seconded by Mr. Segrave. Motion carried in an amount not to exceed \$424,200.00. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Johnson and Mr. Laybourn. (#8047)

[CA] Drainage Easement Agreement granted by Kenrich, LLC to the City of Cheyenne to ensure maintenance of a storm water conveyance system along the Christensen Road corridor (2017 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried in an amount not to exceed \$424.00. (#8048)

[CA] Interagency Agreement between the City of Cheyenne and the State of Wyoming, Department of State Parks and Cultural Resources, to outline projects, responsibilities, and special provisions at the High Plains Research Station and Arboretum (Revenue to City). Motion (per Consent Agenda) carried. (#8049)

[CA] Contract Modification #1 to Contract #7960 between the City of Cheyenne and Asphalt Preservation LLC, for additional materials required to complete the 2024 Surface Seal #1 Project. (2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7968 between the City of Cheyenne and Asphalt Preservation LLC, for additional materials required to complete the 2024 Surface Seal #2 Project. (2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

Consideration of Bid #S-2-25 for an Agreement between the City of Cheyenne and Reiman Corp. for the Depot Renovation Project (2021 Specific Purpose Option Tax Fund). Mr. White declared a conflict of interest and vacated council chambers. Mr. Johnson moved to approve, seconded by Dr. Rinne. Motion carried in an amount not to exceed \$1,426,265.00. Voting “yes” – all members of the governing body present in council chambers. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Segrave. (#8050)

[CA] Consideration of Bid #S-4-25 for an Agreement between the City of Cheyenne and S&S Builders LLC, for the Dutcher Athletic Complex Restroom and Concession Building Project. (2021 Specific Purpose Option Tax Fund, Lottery Proceeds and Recreation Mill Grant) – referred to Finance Committee.

[CA] Consideration of Bid #S-24-24 for an Agreement between the City of Cheyenne and Traffic Safety Services, Inc., for the 2024 Thermoplastic Markings #1 Project. (2019-2022 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-1-25 for 2 greens mowers and 3 tee box mowers for the Golf Division. (Golf Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-1-25 for an Agreement between the City of Cheyenne and Orion Environmental Inc., for the Cheyenne Railcar Project, Bid Package No. 1, Asbestos and Lead Paint Abatement Project. (General Fund Reserves and Economic Development Administration Grant) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made that a Calcutta benefitting the Wyoming Breast Cancer Initiative, will be held October 4 – October 6, 2024 at Peppermill Bar, 1618 Stillwater Ave., Cheyenne, WY (10% of proceeds go to the charity).

The following members of the governing body made comments under Other Business: Dr. Aldrich, Mr. Johnson and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:42 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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